

Dharam Pal Sharma v. State of U.P. and others

Allahabad High Court · Division Bench · 8 January 2025 · 2025:AHC:4130-DB · WRIT - C No. - 35093 of 2024 · **Writ disposed of; petitioner relegated to Clause 6.5.**

HEADNOTE

Writ seeking consideration of a representation against disconnection and for restoration of supply disposed of without deciding merits. Outstanding dues on the previous connection and restoration are to be examined by the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005, by a reasoned speaking order.

FACTUAL SUMMARY

Dharam Pal Sharma filed a writ petition seeking consideration of his representation dated 2 September 2024 in respect of disconnection of his earlier electricity connection. Counsel for the respondents submitted that the dispute was not confined to restoration of supply: outstanding dues relating to the previous connection were also in controversy. The petitioner was permitted to correct the description of respondent no. 3. The High Court did not enquire into the disconnection or the arrears on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

forum for restoration and outstanding dues

HOLDING

A grievance regarding disconnection of an earlier electricity connection, restoration of supply, and outstanding dues on the previous connection is to be examined by the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner was permitted to approach respondent no. 3 under Clause 6.5 within two weeks; that authority shall pass a reasoned speaking order in accordance with law within six weeks. ¶ 3-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Writ seeking consideration of a representation against disconnection and for restoration of supply disposed of without deciding merits. Outstanding dues on the previous connection and restoration are to be examined by the competent authority under Clause 6.5 of the U.P.. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF RESTORATION AND OUTSTANDING DUES

Whether the connection should be restored and whether arrears on the previous connection were due were left to the Clause 6.5 authority. ¶ 3-4